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Sealed Defendant Sentencing Memorandum

Filed: February 19, 2026 **Synthetic docket:** SYN-MDNC-25-CR-0328 **Sealed volume:** SEN-SV-1

Mateo Serrano, through Celia Arden, submits this memorandum before the February 24 sentencing hearing. It uses abstract fictional facts and inert labels, contains no real presentence information, and supplies no operational account of the offense.

Serrano pleaded guilty to Count One, conspiracy to commit wire fraud under 18 U.S.C. §§ 1349 and 1343. He accepts responsibility for knowing participation in false reimbursement claims against Meridian Community Supply Cooperative. The offense ended November 2, 2025, and the stipulated aggregate loss and restitution amount is \$186,400.

The remaining calculation dispute is **Role-Beryl**: whether Serrano managed or supervised Alina Pared, one of exactly five criminally responsible participants. The defense maintains that he did not. Independently, **History-Dovetail** and **Person-Fable** identify mitigation bearing on the sentence. This memorandum is automatically sealed as a presentence-related filing, and its public partner DE35 is only a category surrogate that discloses no protected substance.

Sentence Requested by the Defense

The defense asks the court to impose 24 months of imprisonment, followed by a supervised-release term the court deems sufficient, together with the agreed restitution and mandatory assessment. That request begins at the low end of the advisory range produced when the disputed role adjustment is removed.

The proposed sentence recognizes the seriousness of a knowing fraud conspiracy and the loss to the fictional cooperative. It also recognizes Serrano's acceptance of responsibility, criminal history category I, progress in structured treatment, caregiving commitments, stable lawful work, and prepared expression of remorse. These matters are grouped under **History-Dovetail** and **Person-Fable** without genuine identifiers.

If the court adopts the three-level adjustment, the defense alternatively requests a downward variance to the same 24-month term. The requested variance does not depend on minimizing the offense or denying the stipulated \$186,400 obligation. It asks the court to distinguish between accountability for participating and a disputed assertion that Serrano exercised authority over Pared. A 24-month sentence, the defense submits, is sufficient but not greater than necessary under § 3553(a).

Advisory Guidelines Calculation

The parties agree that the 2025 Guidelines Manual applies because the conspiracy continued through November 2, after that Manual became effective. Serrano is in criminal history category I. The only disputed component is the three-level manager-or-supervisor adjustment under § 3B1.1(b).

With the adjustment, the final presentence calculation produces total offense level 20 and an advisory imprisonment range of 33 to 41 months. Without it, the total offense level is 17 and the advisory range is 24 to 30 months. **Range - Cinder** refers to this two-path calculation and nothing else.

The plea agreement did not fix the range, require the enhancement, or bind the court to a sentence. Serrano knowingly accepted that Judge Venn would calculate the range after resolving disputed facts. He also accepted restitution of \$186,400 and the mandatory \$100 assessment. The defense asks the court to begin with level 17 because the government has not proved person management. Even if the court selects level 20, the Guidelines remain advisory and the statutory factors support the requested below-range term.

Section 3553(a) Framework

The sentence should reflect the abstract offense's seriousness while remaining proportionate to Serrano's actual conduct and personal circumstances. **Fact - Aster** establishes knowing participation in false claims for services not performed, a stipulated loss, and a conspiracy lasting from August 4 through November 2, 2025. Serrano does not ask the court to disregard those facts.

The history-and-characteristics inquiry includes early acceptance of responsibility, category-I criminal history, sustained lawful work, documented treatment progress, and regular caregiving. **History - Dovetail** collects the sensitive portions of that presentation without raw personal identifiers. These facts bear on deterrence and the prospects for successful supervision.

A 24-month term provides substantial punishment and communicates that fraudulent claims against a community cooperative have consequences. At the same time, it avoids converting a contested role inference into a sentence longer than necessary. Restitution and supervised release add concrete accountability. The defense is not seeking disparity through comparison to an invented case; it asks for individualized application of the statutory factors to this synthetic record. The court may impose conditions supporting continued treatment and lawful employment without naming a provider or workplace here.

Preserved Objection to Section 3B1.1(b)

Serrano renews the objection submitted January 23. The Guidelines require the government to prove that he managed or supervised at least one other criminally responsible participant. The fact that the conspiracy involved five participants satisfies the numerical branch of § 3B1.1(b), but it does not establish Serrano's role.

The government identifies only Alina Pared as an alleged supervisee. In the defense view, **Fact - Aster** shows voluntary cooperation among participants who retained their own choices. Serrano made requests and shared information, but the record does not show a command relationship, authority to compel performance, or control over Pared's decision to participate. See *United States v. Steffen*, 741 F.3d 411, 414–16 (4th Cir. 2013).

The defense does not rely on management of property, assets, or activities. It accepts that those concepts cannot substitute for management of a person. It disputes the interpersonal inference itself. Because the government bears the burden by a preponderance, ambiguity about whether Pared followed Serrano's direction or acted as an independent participant should result in removal of the three levels and use of the 24-to-30-month range.

Defense Mitigation Presentation

Before the hearing, Serrano prepared a personal statement addressing remorse, treatment progress, caregiving, and stable work. History-Dovetail records that he intended to acknowledge the harm caused by knowingly joining false claims, apologize without qualification, and explain concrete changes begun after the offense.

The statement also describes regular participation in a structured treatment program and the routines supporting continued compliance. No provider, diagnosis, address, or medical identifier appears in this exercise. Serrano planned to explain that lawful employment has supplied stability and that family caregiving responsibilities give daily structure and a reason to avoid further misconduct.

These points do not erase the offense or reduce restitution. They matter because the court must choose a sentence within a discretionary system, and an individual's own account can illuminate remorse and future conduct in a way counsel's advocacy cannot. Arden asks the court to hear Serrano personally before selecting a term and to consider whether his progress and responsibilities make 24 months, with supervision and restitution, sufficient. The prepared statement is not reproduced verbatim and contains no real person's history.

Remorse and Treatment Progress

Serrano's remorse is directed to the cooperative and the people whose resources were diverted by the fictional claims. He does not blame Alina Pared or any other participant for his own knowing choice. He acknowledges that repayment cannot undo the disruption and accepts the \$186,400 restitution obligation.

History-Dovetail also reflects sustained participation in a structured, noncustodial treatment program begun after the offense. Attendance records in the exercise show regular engagement, completion of assigned sessions, and a plan for continuity during supervision. The memorandum deliberately omits a provider name, clinical detail, or location.

The defense offers treatment progress as evidence of present responsibility and reduced risk, not as an excuse for fraud. Continued programming can be enforced through appropriate supervised-release conditions. A sentence of 24 months still imposes a significant loss of liberty while preserving a realistic path back to the routines that have supported lawful conduct. Because Serrano intended to convey these points in his own voice, the defense asks that he be personally invited to speak at the hearing after counsel concludes.

Caregiving and Stable Employment

Person-Fable identifies two additional circumstances without naming any nonparty. Serrano provides recurring care and transportation for an adult family member with limited mobility. The arrangement is shared, and incarceration will require others to assume those duties, but the defense does not claim the family would be left entirely without help.

Serrano has also maintained steady lawful employment in a scheduling and inventory role since shortly after the charged period. The employer is not identified. Exercise records describe regular attendance, increasing responsibility, and willingness to retain him after release. His duties do not involve financial accounts or claims processing.

These facts support a sentence that permits eventual restoration of stable routines. They do not make Serrano's circumstances unique or place him beyond punishment. Rather, they help evaluate deterrence, rehabilitation, and the practical consequences of a term above what is necessary. The defense asks the court to combine 24 months with three years or less of supervision, continued lawful work, treatment, and restitution payments tied to ability. Such a disposition would preserve accountability while recognizing the constructive responsibilities already underway.

Alternative Variance Analysis

If Judge Venn adopts offense level 20, the defense requests a variance from the 33-to-41-month range to 24 months. The same **History-Dovetail** and **Person-Fable** facts support that alternative, together with the narrow nature of the role dispute and Serrano's category-I history.

The variance request does not ask the court to decide that § 3B1.1(b) is generally too severe. It asks for an individualized sentence after the advisory calculation. Even if the protected interactions permit a finding that Serrano supervised Pared, the record does not suggest formal authority, violence, threats, control over all participants, or direction of the conspiracy as a whole.

A 24-month term plus restitution, assessment, and supervised release meaningfully addresses punishment and deterrence. It also leaves room for the court to recognize acceptance, treatment, caregiving, and stable work. The government may assign different weight to those facts, but their presence is undisputed enough to create a sound basis for discretion. The defense asks the court to explain its evaluation in open terms without exposing sensitive personal-history details.

Requested Sentencing Disposition

Serrano respectfully requests 24 months of imprisonment, a supervised-release term no longer than three years, restitution of \$186,400, the mandatory \$100 assessment, and no fine in light of limited ability to pay beyond restitution. He requests conditions supporting continued treatment and lawful employment without unnecessary disclosure of protected information.

The defense first asks the court to sustain the role objection and use total offense level 17, criminal history category I, and the 24-to-30-month range. Alternatively, it asks the court to vary downward from the level-20 range. Either path permits the same sentence after consideration of § 3553(a).

Counsel further requests that the court address Serrano personally before imposing sentence and allow him to present his prepared remarks. Counsel's description of mitigation is not a substitute for his own opportunity to speak. The memorandum makes that procedural request in advance so the hearing can include both attorney advocacy and Serrano's personal statement. Nothing here predicts the court's ruling; it records the defense position as of February 19.

Sealed Filing and Service

Celia Arden filed this memorandum through the closed synthetic presentence channel on February 19, 2026. It was made available to Judge Venn, Niko Faye, and Bram Ives for sentencing preparation. Public docket entry DE35 records only a category surrogate; the protected exercise text is maintained as SEN-SV-1.

The filing contains no real address, contact information, account, credential, medical record, employer record, or presentence report. **Fact - Aster**, **Role - Beryl**, **Range - Cinder**, **History - Dovetail**, **Position - Echo**, and **Person - Fable** are inert labels used solely to keep this fictional record nonidentifying.

The memorandum's sealed status follows from its reliance on presentence and personal-history material. No separate discretionary sealing motion was filed. A workbench session may project this source only under a disclosure-specific synthetic grant; that feature is not access to PACER, CM/ECF, Probation, or any real repository. Counsel certifies service within the exercise and requests consideration at the February 24 hearing, without representing how the court will rule or what sentence it will impose.